

District- Noakhali

**In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)**

Present:

Mr Justice Md Atoar Rahman

Civil Revision No. 2588 of 2022

Boni Amin Ullah Master and others

...defendants-petitioners

- versus-

Mostafijer Rahman and others

...plaintiff-opposite-parties

Mr. Abul Kalam Chowdhury, Advocate

... for the defendants-petitioners

Mr. Md. Ziaul Hoque, Advocate with

Ms. Tashrifa Sultana Joli, Advocate

... for the plaintiff-opposite-parties

**Heard on: 06.12.2023, 12.12.2023 and
15.01.2024**

Judgment on: 07.02.2024

This Rule was issued on an application under section 115(1) of the Code of Civil Procedure, 1908 calling upon the opposite party No. 1 to show cause as to why the impugned judgment and decree dated 27.02.2020, passed by the learned Assistant Judge, First Additional Assistant Judge Court, Sadar, Noakhali in Title Suit No. 109 of 2008 should not be set aside and/or passed such other or further order(s) as to this court may seem fit and proper.

During issuance of the Rule operation of the impugned judgment and decree dated 27.02.2020 was stayed.

The short facts for the purpose of disposal of the Rule are that the present opposite party No. 1 Mostafijer Rahman as plaintiff instituted the Title Suit No. 109 of 2008 before the learned Senior Assistant Judge, Sadar, Noakhali for recovery of khash possession of Kha schedule land out of Ka schedule to the plaintiff under the Specific Relief Act stating inter-alia that the plaintiff being owner and possessor by way of purchase vide three deeds of purchase namely 5776 of 1977, 13229 of 1980 and 12263 of 1980. On 01.01.2007 the defendants petitioners forcibly dispossessed him and erected a tin shed house on the Kha schedule land although they had no right, title and interest over the suit land.

The defendants No. 1 to 3 contested the suit by filing a joint written statement. On transfer the suit was heard and disposed of by the 1st Additional Assistant Judge, Sadar, Noakhali who having considered the evidence and facts and circumstances of the suit decreed the same by his judgment and decree dated 27.02.2020. Against such judgment and decree the defendants preferred an appeal being Title Appeal No. 52 of 2000 before the learned District Judge, Noakhali who admitted the appeal on 16.08.2002 and stayed the operation of the impugned judgment and decree till disposal of the appeal. Thereafter the appeal was fixed for

maintainability hearing and at the time of hearing the learned District Judge found that the decree of the trial court was passed in the suit instituted under section 9 of the Specific Relief Act for recovery of khash possession for which the judgment and decree was not appealable and ultimately he dismissed the appeal by his judgment and decree dated 06.10.2021 on maintainability ground.

In view of the above judgment and decree the defendants-appellant moved this court against the judgment and decree dated 27.02.2020 passed by the learned Assistant Judge in the Title Suit No. 109 of 2008 with an application under section 115 (1) of the Code of Civil Procedure and obtained the present Rule and order of stay.

Mr. Abul Kalam Chowdhury, the learned Advocate appearing on behalf of the defendants-petitioner has submitted that as per the statements in the plaint and judgment passed by the trial court the suit was filed under section 9 of the Specific Relief Act. In paragraph No. 3 of the plaint it is stated that the plaintiff-opposite party was dispossessed by the defendants-petitioners from the suit land on 01.01.2007, but the suit was filed on 12.03.2008 after about 14 months from above date of disposition. As per the law the suit ought to have been filed within 6 months from the date of alleged dispossession. But the learned Judge of

the trial court committed a serious error of law in decreeing the suit for recovery of khash possession ignoring the legal aspects of section 9 of the Specific Relief Act which caused miscarriage of justice and, as such, impugned judgment and decree is not sustainable in law.

Mr. Md. Ziaul Hoque, the learned Advocate appearing on behalf of the plaintiff opposite party has submitted that the plaintiff did not file the instant suit under section 9 of the Specific Relief Act. Rather, it was filed under section 8 of the said Act for which the limitation of filing the suit was 12 years, as such, the suit was filed well within time. He has further submitted that the basic difference between the suit for recovery of khash possession is that suit under section 9 would be filed within six months from the date of dispossession where title is immaterial; but in a suit under section 8 prayer for recovery of khash possession would be made on the basis of title. In the instant case the plaintiff opposite party established his title by way of purchase which clearly indicates that the suit was filed under section 8 of the Specific Relief Act and the impugned judgment and order is appealable under section 96 of the Code of Civil Procedure and, as such, the civil revision under section 115 (1) is not maintainable and accordingly the Rule is liable to be discharged.

I have heard the submissions placed by the learned Advocates for both the parties and perused the record along with the impugned judgment and other connected papers and also examined the relevant laws.

It appears that the plaintiff respondent instituted the Title Suit No. 109 of 2008 claiming himself as a lawful owner in the Ka schedule land by way of purchase vide three purchase deeds. Nowhere in the plaint it has been stated that the suit was filed under section 9 of the Specific Relief Act. The plaintiff deposed as P.W. 1, but in his deposition did not say that the suit was filed under section 9 of the Specific Relief Act. Moreover, in a suit under section 9 of the Specific Relief Act full adveloram court fee is not required. In the present suit the plaintiff respondent instituted the suit submitting full adveloram court fee. The suit was filed after expiry of almost 14 months from the date of alleged dispossession. In a suit under section 9 of the Specific Relief Act suit must be filed within 6 months from date of dispossession. All the ingredients of a suit under section 8 of the Specific Relief Act are found in the present suit. Thus, it is clear that the suit was not instituted under section 9 of the Specific Relief Act, rather it was filed under section 8 of the said Act. As such, it appears that the learned District Judge, Noakhali by his order dated 16.08.2020

rightly and perfectly admitted the Title Appeal No. 52 of 2020 filed by the defendants petitioner under section 96 of the Code of Civil Procedure against the impugned judgment and decree passed by the learned trial Judge in the Title Suit No. 109 of 2008. But subsequently by his judgment and decree dated 06.10.2021 the learned District Judge committed an error of law having dismissed the appeal holding that the same was not maintainable as the suit was filed under section 9 of the Specific Relief Act.

Since the Title Appeal No. 52 of 2020 filed by the present petitioner was maintainable as per the provisions of law, the present civil revision filed under section 115(1) of the Code of Civil Procedure is not maintainable and, as such, the Rule is liable to be discharged on maintainability ground.

In the result, the Rule is discharged without any order as to cost.

The order of stay granted at the time of issuance of the Rule is hereby vacated.

The judgment and decree dated 06.10.2021 passed by the learned District Judge, Noakhali in the Title Appeal No. 52 of 2020 is hereby set aside and the said appeal is re-admitted in its original file and number. Learned District Judge is directed to

dispose of the Title Appeal No. 52 of 2020 on merit within 6 months from the date of receipt of this judgment.

Let the lower courts' records along with a copy of this judgment be transmitted to the learned Distirct Judge Noakhali at once.